

Message History (4)

On 5/14/2026 4:37:22 PM, Brian C wrote:

Ms. Santiago,

Thank you for the May 14, 2026 response to W012663-050426. I am writing to seek clarification on the City's withholding determinations under Items 2 and 6, and on the relationship between those determinations and the "no responsive records" findings on Items 1, 3, 4, and 5.

As you are aware, Gov. Code § 7923.600 exempts "records of complaints to, or investigations conducted by ... any state or local police agency, [or] any investigatory or security files compiled by ... any other state or local police agency, for correctional, law enforcement, or licensing purposes." The exemption's threshold turns on whether the investigative activity at issue was conducted by a state or local police agency.

1. Item 2 sought audit-log entries memorializing access by University of the Pacific, Stanford University, and University of San Francisco accounts to SMPD-originated ALPR data via NCRIC systems. The City withheld these records under § 7923.600.

a. Does the Department's invocation of § 7923.600 on Item 2 rest on a determination that account activity by University of the Pacific, Stanford University, and/or University of San Francisco constitutes investigation conducted by "a state or local police agency" within the meaning of § 7923.600? If so, please identify the legal authority supporting that characterization for each named institution.

b. If the Department's position is that § 7923.600 applies notwithstanding that the access was by private-institution accounts, please identify the specific statutory or case-law authority extending § 7923.600 to investigative activity by non-public entities.

c. The University of the Pacific's Chief of Police confirmed in writing on March 11, 2026 that UOP is a private institution not subject to the California Public Records Act. Stanford University and the University of San Francisco are 501(c)(3) private universities. The Department's Item 2 response is consistent with two readings: (i) the Named Recipients are state or local police agencies for § 7923.600 purposes; or (ii) § 7923.600 was invoked over records of activity by entities that are not state or local police agencies. Which reading describes the Department's position?

2. Item 6 sought ALPR data SMPD transmitted, contributed, or otherwise made available to NCRIC, and SMPD-side audit-log entries memorializing those contributions, including channel, timestamp, and data volume. The City withheld these records under § 7923.600.

a. Please identify which investigation or investigatory file the Department's bulk transmissions to NCRIC are records of.

b. The records sought at Item 6 are transmission metadata (channel, timestamp, volume) memorializing data SMPD made broadly accessible to the NCRIC outbound network. Does the Department consider transmission metadata of that character to qualify as investigatory records within the meaning of § 7923.600 independent of any specific investigation?

3. Items 1 and 2 concern the same disclosure event from opposite ends of the record. Item 1 sought ALPR data NCRIC disclosed to the Named Recipients; the Department's response was "no responsive records." Item 2 sought audit-log entries memorializing the Named Recipients' access to SMPD-originated data; the Department's response was withholding under § 7923.600 — which presupposes that responsive records exist.

a. Please confirm whether responsive audit-log entries exist for Named Recipient access to SMPD-originated ALPR data via NCRIC systems.

b. If responsive Item 2 records exist, please clarify the relationship between that finding and the "no responsive records" determination on Item 1.

4. The original request invoked segregability under Gov. Code § 7922.525(b). That statute requires the agency to make available "any reasonably segregable portion of a record ... after deletion of the portions that are exempted by law." It applies to records partially withheld under § 7923.600 as well as to other withholdings.

a. The Item 2 audit-log entries contain content that is non-exempt independent of any investigative content: the existence and count of responsive entries, the identifier of the Named Recipient associated with each entry, the date or date range of access, and channel/volume metadata. Please produce that content in a redacted form, with any reasonably segregable investigative material redacted.

b. The Item 6 transmission records contain channel, timestamp, and data-volume metadata that is independent of any specific investigation. Please produce that content in a redacted form.

c. If the Department's position is that no portion of the Item 2 or Item 6 records is reasonably segregable, please describe the segregability analysis the Department performed and identify the specific content within each record that the Department determined could not be produced after redaction.

5. The original request asked, if any portion were denied:

1. provide specific exemption citations per Gov. Code § 7922.540;
2. identify the withheld record type and volume;
3. indicate whether the denial rests on a claim that the records are held by NCRIC or Flock Safety rather than SMPD; and
4. if the denial invokes Civil Code § 1798.90.55(b) or any other rationale treating the records as protected "ALPR information" restricted from disclosure to non-public entities, state whether SMPD considers NCRIC's onward disclosure of SMPD-originated ALPR data to UOP, Stanford, and USF — non-public institutions — to have been lawful under that provision, and identify the legal authority supporting that position.

The May 14, 2026 response addressed (1) by citing § 7923.600 on Items 2 and 6, but did not provide (2) the withheld record type and volume, did not address (3), and did not address (4). I would appreciate that information, and (as set out in item 4 above) any reasonably segregable non-exempt portions of the withheld records in redacted form.

Thank you for your time. I am happy to re-file as a new PRA if the portal workflow prefers that format.

Brian C

On 5/14/2026 4:29:02 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012664-050426

Body:

RE: PUBLIC RECORDS REQUEST of May 04, 2026, **Reference # W012664-050426**

Dear Brian C,

The City received the following records request from you on May 04, 2026.

Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context. On April 28, 2026, in response to PRA W012570-041926, SMPD produced a Flock platform event log ("SMPD4.20.2026_EVENTLOG") reflecting two events involving "Receiving Organization: University of the Pacific (CA)":

- Event ID 7ede5f4e-4f97-56dc-9357-4b92d3904374 — 2026-02-12 04:51:19.301Z — create networkShare — Permissions: feedView (User: Phoenix O'Rourke)*
- Event ID 5469f801-e05e-5c39-ace6-0ce9abf1106a — 2026-02-28 04:09:40.789Z — delete networkShare — Permissions: Search, VMS, Hotlist (User: Steve Casazza)*

On the face of the produced log, the Feb 12 create (feedView) has no corresponding delete event, and the Feb 28 delete (Search, VMS, Hotlist) has no corresponding create event. The literal reading is that a feedView share to University of the Pacific was created on Feb 12 and was never removed. An alternative reading is that the two events describe the same share whose permissions were modified between Feb 12 and Feb 28, in which case any modification events would also be responsive to PRA W012570-041926. I'd like to resolve which reading is correct and confirm the current state of any sharing relationship with University of the Pacific.

Scope of records. As established in W012570-041926, this request reaches records held by Flock Safety as SMPD's agent or contractor, or otherwise accessible to SMPD through its Flock account. SMPD's Master Services Agreement § 4.1, SMPD Policy 463 (§§ 463.2, 463.5), and SMPD SOP 205.5.1 each confirm that platform records concerning SMPD's data and sharing configuration are SMPD records within the meaning of Gov. Code § 7920.530, regardless of which server they reside on. SMPD has already produced records of this type from the Flock platform under W012570-041926.

Records requested:

- 1. The current state of any networkShare records, network sharing entitlements, or equivalent data-sharing relationships between SMPD and University of the Pacific (CA) on the Flock Safety platform — for each, its*

identifier, permission scope, and creation date. **Responsive documents were previously provided to you under PRA #W012570-041926.**

2. All Flock platform event-log entries — of any event type — referencing University of the Pacific (CA) as a receiving organization, sharing partner, or otherwise associated entity, between January 1, 2026 and the date of this request. Item 2 of W012570-041926 produced two such events; this request seeks any further events of any type (create, update, modify, permission change, delete, or otherwise) for that same entity and period.

Responsive documents were previously provided to you under PRA #W012570-041926.

3. Records reflecting the termination, deletion, modification, or end of the networkShare with permissions "feedView" created on 2026-02-12 (Event ID 7ede5f4e-4f97-56dc-9357-4b92d3904374) — including any platform event-log entry, configuration change record, communication, or other indication that the share was ended or its permissions altered. If no such records exist, please indicate whether this means:

(i) the share was terminated but the termination was not captured in the platform event log;

(ii) the share remains active; or

(iii) the Feb 12 create event and the Feb 28 delete event refer to the same networkShare whose permissions were modified between those dates — in which case, the records reflecting that modification are responsive to this item.

Responsive documents were previously provided to you under PRA #W012570-041926.

4. Any documentation describing the meaning and scope of the Flock platform's networkShare permission types — specifically "feedView," "Search," "VMS," and "Hotlist" — including what data access, query capability, or live-feed visibility each grants to a receiving organization. Vendor documentation, help-center articles, administrator guides, or platform reference materials in SMPD's possession are responsive. **Responsive.**

Anticipated exemption issues:

* Civil Code § 1798.90.55(b) (via Gov. Code § 7927.705). The records requested describe sharing-configuration metadata — share identifiers, permission scopes, lifecycle events, and vendor documentation — not "ALPR information" as defined in § 1798.90.5(c) (information or data collected through use of an ALPR system). § 1798.90.55(b)'s restriction operates against disclosure of ALPR information itself; it does not exempt records documenting the configuration of sharing relationships. SMPD's production under W012570-041926 included configuration metadata of this exact type.

* Gov. Code § 7923.600 (investigation records). The records concern administrative configuration of a data-sharing platform, not files compiled for any particular SMPD investigation, and contain no plate data or investigative content.

* Records held by Flock Safety. Per the Scope-of-records paragraph and Gov. Code § 7920.530, share-lifecycle records held within Flock on SMPD's behalf are SMPD records. SMPD has already produced records of this type from the Flock platform under W012570-041926.

** Segregability (§ 7922.525(b)). Items 1, 3, and 4 are administrative configuration data and vendor documentation containing no investigative content. Item 2 may include event types beyond networkShare; if any individual event type is asserted to be exempt, please segregate and produce the remaining responsive events.*

If any portion is denied, please:

- 1. provide specific exemption citations per Gov. Code § 7922.540;*
- 2. identify the withheld record type and volume;*
- 3. indicate whether the denial rests on a claim that the records are held by Flock Safety rather than SMPD; and*
- 4. if the denial invokes Civil Code § 1798.90.55(b) or any similar provision, explain how that provision applies to sharing-configuration metadata that does not contain ALPR information as defined by § 1798.90.5(c).*

Thank you.

We have made a good faith and diligent effort to complete your request, in which responsive records have been collected. These records are available on the San Mateo Records Request Portal. Select the link below to view.

The City has completed its response to your request and now considers this record request

W012664-050426 closed.

If you have any questions, please contact me using the below contact information.

Sincerely,

Juliana Santiago

Management Analyst

Police

650-522-7600

On 5/4/2026 1:53:56 AM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 5/4/2026 and given the reference number **W012664-050426** for tracking purposes.

Record(s) Requested: Pursuant to the California Public Records Act (Gov. Code § 7920.000 et seq.), I request the following records from the San Mateo Police Department.

This request seeks existing records only (Gov. Code § 7922.530; Sierra Club v. Superior Court (2013) 57 Cal.4th 157).

Context. On April 28, 2026, in response to PRA W012570-041926, SMPD produced a Flock platform event log ("SMPD4.20.2026_EVENTLOG") reflecting two events involving "Receiving Organization: University of the Pacific (CA)":

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- 4. if the denial invokes Civil Code § 1798.90.55(b) or any similar provision, explain how that provision applies to sharing-configuration metadata that does not contain ALPR information as defined by § 1798.90.5(c).**

Thank you.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 5/4/2026 1:53:35 AM, Brian C wrote:

Request Created on Public Portal